



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 14 1993

DOT-E 10947

1. CSX Transportation, Jacksonville, Florida, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 105J400W tank car, containing liquefied petroleum gas, meeting all DOT requirements except that the tank car tank is overdue for retest, and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on CSX Transportation's application of January 8, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
3. HAZARDOUS MATERIALS (Descriptor and class). Liquefied petroleum gas, classed as flammable gas.
4. PROPER SHIPPING NAME (49 CFR 172.101). Liquefied petroleum gas.
5. REGULATION AFFECTED. 49 CFR 173.31(c)(1) and 173.29(c)(2).
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES.
 - a. Packagings prescribed is a DOT Specification 105J400W tank car, ACFX 77119, meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tank is overdue for retest.
8. SPECIAL PROVISIONS.
 - a. Tank car, ACFX 77119, must be marked "DOT-E 10947" in four inch letters on a contrasting background above the DOT specification number.
 - b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

c. Shipment of tank car, CFX 77119 containing liquefied petroleum gas, must be between CSX Yard, Flint, Michigan and Marysville Underground Storage, Marysville, Michigan, a distance of approximately 73 miles, using the most direct route available via CSX Transportation. After unloading of the liquefied petroleum gas, shipment of tank car, ACFX 77119 containing a residue of liquefied petroleum gas, must be from Marysville Underground Storage, Marysville, Michigan, to ACF Industries, Milton, Pennsylvania, a distance of approximately 673 miles utilizing the most direct route available via CSX Transportation and Consolidated Rail Corporation.

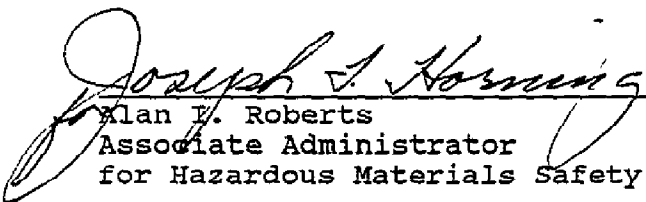
d. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

9. REPORTING REQUIREMENTS. In addition to the reporting requirements of 49 CFR 171.15, any abnormal occurrence in transportation must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. February 26, 1993.

Issued at Washington, D.C.:


Alan E. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 14 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.